2057

Executive Order

No. 3320

I, Woodrow Wilson, President of the United States of America, pursuant to an act of Congress entitled "An Act to provide further for the National Security and Defense by encouraging the production, conserving the supply and controlling the distribution of food products and fuel", approved August 10th, 1917, and an act of Congress entitled "An Act to enable the President to carry out the price guarantees made to producers of wheat of the crops of 1918 and 1919 and to protect the United States against undue enhancement of its liabilities thereunder", approved March 4th, 1919, and by virtue of the authority vested in me by said acts of Congress and each of them, as well as by virtue of any and all other acts of Congress conferring authority upon me in the premises, do hereby authorize, order and direct as follows:

The executive administration of the provisions of the above acts insofar as they apply to the wheat and its product of the crop of 1919 and the guarantees made to producers thereof and the protection of the United States against undue enhancement of its liabilities thereunder is hereby vested in a person to be designated and called the United States Wheat Director, and I hereby appoint Julius H. Barnes as such United States Wheat Director to act as such during the pleasure of the President. I hereby authorize and direct the United States Wheat Director to take such measures, adopt such administrative procedure, enter into such arrangements or agreements, withhold, refuse, issue, suspend and revoke such licenses and make such requisitions, orders, rules and regulations not inconsistent with law as he may from time to time deem necessary and proper for the purpose of such executive administration or as may be required in order to carry into effect this order or any orders and proclamations hereafter issued by me under the aforesaid acts or either of them in connection with such executive administration for such purpose. I vest in the United States Wheat Director all power and authority conferred upon me under the provisions of said acts applicable thereto. The United States Wheat Director shall have authority to employ and make use of the services of such agents, assistants and employees as he may deem necessary and as may be selected by him for service in connection with said executive administration with the consent and approval of the President and under such rules and regulations as may from time to time be prescribed. He shall also have authority to make use of the services of legal counsel and employ and fix the compensation of such counsel as may from time to time be deemed by him necessary for the purpose of aiding him in such executive administration and in carrying the provisions of said acts into effect.

I further find it essential and hereby direct that in order to carry out the guarantees made to producers of the wheat of the crop of 1919 and to protect the United States against undue enhancement of its liabilities thereunder, the United States Wheat Director utilize the services of the Food Administration Grain Corporation as an agency of the United States and to that end I authorize the Food Administration Grain Corporation to buy and sell wheat of the crop of 1918 after June 1st, 1919, and I further authorize the Food Administration Grain Corporation subject to the approval of the United States Wheat Director to buy or contract for the purchase of wheat of the 1919 crop at the places designated for the delivery of the same by the President's proclamation or at such other places as the United States Wheat Director may designate for cash at the said guaranteed prices and the said Food Administration Grain Corporation with the approval of the United States Wheat Director is thereafter authorized to buy or contract for the purchase of for cash or sell, consign or contract for the sale of for cash or on credit wheat of the said crops and flour produced therefrom at said guaranteed prices or at such other prices and on

such terms or conditions as the United States Wheat Director may deem necessary or expedient or said Food Administration Grain Corporation is authorized to borrow such sums of money to enter into such voluntary agreements to make such arrangements and to do and perform such acts and things as may be necessary in order to make said guaranteed price effective and to carry out the purposes of said acts.

Inasmuch as the Food Administration Grain Corporation was formed as an agency of the United States in connection with the United States Food Administration activities under the control and direction of the United States Food Administration and since its functions will be substantially complete on June 30th, 1919, I hereby direct that Food Administration Grain Corporation close its books on June 30th, 1919, and make a complete report as of said date and further that upon said date or as soon thereafter as may be practicable it shall take the proper steps to change its corporate name from Food Administration Grain Corporation to United States Grain Corporation under which title it shall perform such duties as hereinbefore provided or as I may hereafter direct.

I further direct that Julius H. Barnes act as a director and as an executive officer of said corporation and that the other directors and executive officers of said corporations be selected by Julius H. Barnes with the approval of the President.

I further direct that the authorized capital stock of said corporation be increased from 1,500,000 to 5,000,000 shares of the par value of hundred dollars each and that the United States purchase from time to time at par so much of the additional capital stock as may be required to supply the necessary capital to enable said corporation to carry out the provisions of this order and that none of said additional stock shall be held by any person other than the United States. The United States Wheat Director is hereby authorized and directed to subscribe for and purchase at any time or from time to time all or any part of said additional capital stock in the name of and for the use and benefit of the United States and to pay for the same out of the appropriation of one billion dollars which is provided for in Section 8 of the foregoing act of Congress approved March 4th, 1919, and I direct the United States Treasurer to honor the requisition of the United States Wheat Director in this respect.

I further direct that all departments and established agencies of the Government cooperate with the United States Wheat Director in the performance of his duty as hereinbefore set forth and to give the United States Wheat Director such support and assistance as may be requisite or expedient to enable him to perform his said duties and avoid duplication of effort and expenditure of funds.

WOODROW WILSON

THE WHITE HOUSE,
May 14, 1919.

[No. 3087.]